CHAPTER 2

RIGHTS IN THE INDIAN CONSTITUTION

CHAPTER ESSENCE AT A GLANCE:
Examine Part III Fundamental Rights, judicial remedies under Article 32, Directive Principles of State Policy, and the dynamic interplay between individual liberty and social welfare.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Fundamental Rights Framework in Part III:** Articles 12 to 35 enshrine six broad clusters: Right to Equality, Right to Freedom, Right against Exploitation, Right to Freedom of Religion, Cultural and Educational Rights, and Right to Constitutional Remedies, which are enforceable against state action.

• **Constitutional Remedies and Judicial Writs:** Article 32 empowers the Supreme Court and Article 226 empowers High Courts to issue prerogative writs (Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo-Warranto), providing prompt legal redress against rights violations.

• **Directive Principles of State Policy in Part IV:** Articles 36 to 51 outline non-justiciable socio-economic goals guiding governance toward a welfare state, promoting distributive justice, equitable wealth distribution, and public health.

• **Interplay and Harmonious Construction:** While Fundamental Rights primarily secure civil and political liberties, Directive Principles establish social and economic democracy; judicial jurisprudence maintains that both parts complement each other in constitutional governance.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Writ Redress (Art. 32 and 226)} \Leftrightarrow \{\text{Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo-Warranto}\}$$

Prerogative judicial instruments protecting fundamental liberties

$$\text{Egalitarian Democracy} = \text{Part III (Civil Liberties)} + \text{Part IV (Socio-Economic Welfare)}$$

Harmonious synthesis between individual freedoms and state welfare obligations

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** The Right to Property was removed from the list of Fundamental Rights by the 44th Constitutional Amendment Act in 1978 and reclassified as an ordinary legal right under Article 300A.

• **Alert:** Directive Principles of State Policy are non-justiciable in court, meaning an individual cannot petition the judiciary to force the government to implement them immediately.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. Distinguish between Fundamental Rights and ordinary legal rights. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Origin and Protection:** Fundamental Rights are guaranteed and protected by the Constitution itself, whereas ordinary legal rights are protected and enforced by ordinary law made by the legislature. **[1 Mark]**

• **Judicial Redress:** An ordinary right requires approaching lower courts first, while a citizen can directly move the Supreme Court under Article 32 for Fundamental Rights enforcement. **[1 Mark]**

2. Why did Dr. B.R. Ambedkar describe Article 32 (Right to Constitutional Remedies) as the heart and soul of the Constitution? [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Enforceability Guarantee:** Without Article 32, the declaration of Fundamental Rights would remain mere pious words on paper without practical enforcement. **[1 Mark]**

• **Direct Apex Court Access:** It grants citizens the right to petition the Supreme Court directly whenever any Fundamental Right is violated by the state. **[1 Mark]**

• **Prerogative Writ Authority:** It empowers the Supreme Court to issue writs like Habeas Corpus and Mandamus to compel authorities to uphold the rule of law. **[1 Mark]**

3. Explain any four prerogative writs issued by the Supreme Court and High Courts under Articles 32 and 226. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Habeas Corpus:** Literally means 'to have the body'; an order directing a person or authority that has detained someone to produce the detainee before the court to test the detention's legality. **[1 Mark]**

• **2. Mandamus:** Literally means 'we command'; issued to a public official, corporation, or lower court commanding them to perform a mandatory legal duty they have failed to execute. **[1 Mark]**

• **3. Prohibition:** Issued by a higher court to a lower court or tribunal forbidding it from exceeding its jurisdiction or acting contrary to natural justice. **[1 Mark]**

• **4. Quo-Warranto:** Literally means 'by what authority'; issued to inquire into the legality of a claim which a person asserts to a public office, preventing illegal usurpation. **[1 Mark]**

4. Compare Fundamental Rights with Directive Principles of State Policy on any four points of difference. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Nature:** Fundamental Rights are negative injunctions preventing the state from encroaching on liberty, while Directive Principles are positive affirmations urging the state to take welfare actions. **[1 Mark]**

• **2. Justiciability:** Fundamental Rights are justiciable and enforceable through courts under Article 32, whereas Directive Principles are non-justiciable under Article 37. **[1 Mark]**

• **3. Purpose:** Fundamental Rights establish political democracy, while Directive Principles aim to establish social and economic democracy. **[1 Mark]**

• **4. Legal Sanction:** Fundamental Rights have legal sanctions and enforceability, whereas Directive Principles rely primarily on moral, political, and electoral sanctions. **[1 Mark]**

5. Examine the scope of the Right to Freedom under Article 19 and explain the reasonable restrictions that can be imposed on it. [Score: 5 Marks]

Answer & Key Valuation Steps:

• **Six Democratic Freedoms:** Article 19(1) guarantees freedom of speech and expression, peaceful assembly without arms, forming associations or unions, moving freely throughout India, residing and settling in any part of India, and practicing any profession, trade, or business. **[1.5 Marks]**

• **Absence of Absolute Freedom:** Freedoms are not absolute; unrestrained liberty would degenerate into public disorder and infringe upon the rights of others. **[1 Mark]**

• **Grounds for Reasonable Restrictions:** The state can impose reasonable restrictions to protect the sovereignty and integrity of India, security of the state, friendly relations with foreign states, and public order. **[1 Mark]**

• **Decency and Morality Safeguards:** Restrictions can also be placed on grounds of decency, morality, contempt of court, defamation, or incitement to an offence. **[1 Mark]**

• **Judicial Review of Reasonableness:** The courts possess the constitutional authority to determine whether any restriction imposed by legislation is genuinely reasonable or arbitrary. **[0.5 Mark]**

6. Analyze the Right to Equality as enshrined in Articles 14 to 18. How do constitutional provisions for reservations support substantive equality rather than violating formal equality? [Score: 6 Marks]

Answer & Key Valuation Steps:

• **Equality Before Law (Article 14):** Guarantees equality before the law and equal protection of the laws within the territory of India, prohibiting arbitrary state discrimination. **[1 Mark]**

• **Prohibition of Discrimination (Article 15):** Prohibits the state from discriminating against any citizen on grounds only of religion, race, caste, sex, or place of birth regarding access to public places. **[1 Mark]**

• **Equal Opportunity and Abolitions (Articles 16, 17, 18):** Ensures equal opportunity in public employment (Art. 16), abolishes untouchability (Art. 17), and abolishes titles (Art. 18). **[1 Mark]**

• **Formal versus Substantive Equality:** Formal equality treats everyone identically; however, treating unequals equally perpetuates existing social inequalities and historical disadvantages. **[1 Mark]**

• **Reservations as Corrective Justice:** Articles 15(4) and 16(4) empower the state to make special provisions and reservations for socially and educationally backward classes and Scheduled Castes and Scheduled Tribes. **[1 Mark]**

• **Conclusion:** Affirmative action is not an exception to equality but an essential instrument to establish a level playing field, transforming abstract equality into living reality. **[1 Mark]**